

jurisdiction over the marriage he had none to order the co-respondent to pay the costs of that part of the suit: they would not have been incurred if he had entertained the objection to his jurisdiction. [Wightman J. Might not the co-respondent have applied for a prohibition before these costs were incurred? At any rate this is not more than ground of appeal. Crompton J. Suppose the Judge Ordinary gave the petitioner the costs of an issue upon which he had not succeeded, that would not be matter for a prohibition.] The wife incurs costs in her defence which are properly the husband's, and they can only be ordered to be paid by the adulterer if the husband succeeds in the principal object of the suit, viz., a dissolution of the marriage. [Crompton J. That is contrary to the words of sect. 34. Suppose the marriage is not within the cognizance of the Judge Ordinary, still that section gives him jurisdiction to order the co-respondent to pay the whole costs of the proceedings: they are the penalty of his adultery.]

Finally, assuming that the co-respondent is a stranger, he may apply for prohibition. In *De Haber v. The Queen of Portugal* (17 Q. B. 171, 196), Lord Campbell, delivering the judgment of the Court, said, p. 214, "We find it laid down in books of the highest authority that, where the Court to which the prohibition is to go has no jurisdiction, a prohibition may [197] be granted upon the request of a stranger, as well as of the defendant himself; 2 Inst. 607, Com. Dig. Prohibition (E)." [Cockburn C.J. Whether the suit is divisible or not, the applicant would only have a right to get that part of it prohibited in which he is interested.] He has a right to apply for a prohibition of the whole if he has any interest in any part.

Lush resumed his argument.—*De Haber v. The Queen of Portugal* (17 Q. B. 171, 196) was a very peculiar case, in which the Lord Mayor's Court assumed jurisdiction over a person not within a jurisdiction. Further, in the present case the respondent and co-respondent having appeared absolutely, and pleaded, it is too late to apply for a prohibition; *Chichester v. The Marquis and Marchioness of Donegal* (Madd. & G. 375; reported in the Court below, 1 Add. 5), where Sir John Leach said, pp. 398, 399, "A party admitting a fact which gives jurisdiction to a Court, and appearing and submitting to that jurisdiction, upon general principles, and upon all analogies known to us, can never recede, or as it is called in the Scotch law, resile from those facts and withdraw that admission." In this Court when a party has appeared by attorney he cannot afterwards dispute the jurisdiction of the Court; though, if he appears in person, the Court allows him to withdraw. In the ecclesiastical Court, appearance is given by the party cited, or by a proctor authorized on his behalf; Coote's Practice of the Ecclesiastical Courts, p. 156: and in the present case the Judge Ordinary was right in refusing to allow the respondent and co-respondent to tack on a protest to their original appearance.

[198] Cockburn C.J.—We have considered the case and need not hear further argument. On this application to the Court for the exercise of its jurisdiction by way of prohibition, more than one question of difficulty arises. Whether the jurisdiction relating to marriage and the dissolution of marriage is to be exercised according to the law of the country to which the parties belonged at the time when the marriage was contracted, and according to the conditions under which they may be supposed to have entered into the marriage contract, or according to the law of the country where the tribunal is situate the intervention of which is prayed, is one of the most difficult questions that can arise upon the conflict between the laws of two countries. I am glad that we are not called upon to decide so intricate a question. So also, assuming that this case was beyond the jurisdiction of the Court for Divorce and Matrimonial Causes: whether that Court being, as I am strongly disposed to think it is, a Court of co-ordinate rank, although the subject-matter of its jurisdiction differs from that of the other superior Courts, is one to which a prohibition could properly issue from this Court, is a question upon which it is unnecessary to pronounce an opinion.

We dispose of this case on the narrower ground: that is to say, on the question relating to the exercise of jurisdiction by this Court.

The applicant, the co-respondent, is a stranger, being aggrieved, on his own shewing, only in so far as he has been decreed to pay all the costs of the suit, including those of the wife, in resisting the suit for the dissolution of the marriage. The suit was one which could be brought against him alone or as a co-respondent. If it [199] had been dismissed as against the wife, it might have been continued against him with a view to obtain damages for the wrong which the husband had sustained. The co-

respondent then is only aggrieved in respect of being ordered to pay the costs of that which is the legal ground of complaint,—in all other respects he is a stranger. I entirely concur in the proposition that, although the Court will listen to a person who is a stranger, and who interferes to point out that some other Court has exceeded its jurisdiction, whereby some wrong or grievance has been sustained, yet that is not *ex debito justitiæ*, but a matter upon which the Court may properly exercise its discretion; as distinguished from the case of a party aggrieved, who is entitled to relief *ex debito justitiæ* if he suffers from the usurpation of jurisdiction by another Court. In the present case, all that the applicant can allege is that he has been wrongfully ordered to pay these costs. That is matter for application to the Court itself by which the decision was given to reform or redress by its own decree; and if redress cannot be obtained there, then to the Court of Appeal. On this ground, I am of opinion that this rule ought to be discharged.

Wightman J. I agree with what the Lord Chief Justice has said on the narrower ground, viz., the insufficiency of interest in the applicant in the subject matter to entitle him to make this application.

With respect to the main ground of application for a prohibition I entertain great doubt, because by stat. 20 & 21 Vict. c. 85, the Judge Ordinary has abundant jurisdiction in the first instance to inquire into the matter. The enactment in sect. 27 is, "It [200] shall be lawful for any husband to present a petition to the said Court, praying that his marriage may be dissolved, on the ground that his wife has since the celebration thereof been guilty of adultery." *Prima facie*, therefore, the petitioner and respondent being British subjects and being lawfully married, although in a country which for this purpose must be taken to be a foreign country, the husband had a right to go to the Court and pray that the marriage should be dissolved. The objection then arises that the marriage is one which is not within the jurisdiction of the Court. That must depend upon questions of fact to be determined somewhere; and it seems to me that the Judge Ordinary has a general jurisdiction to inquire into and determine those that may be raised as to the place where, or the circumstances under which, the marriage took place; and supposing he came to a wrong decision, I think it would be a ground for appeal rather than for prohibition. It is not, however, necessary to determine that matter.

Crompton J. I feel great difficulty as to the question whether this marriage is within the Act of Parliament relating to divorce and matrimonial causes; and agree in deciding the case on the narrower ground.

The applicant having had costs awarded against him under stat. 20 & 21 Vict. c. 85, s. 34, and being an adulterer, has no *locus standi* to complain of the dissolution of the marriage; the only suggestion is, that he is aggrieved because he is ordered to pay costs. But they are independent of the dissolution of the marriage. Sect. 34 gives the Court discretion to order all the costs of the proceedings to be paid by the adul-[201]-terer,—whether those proceedings are successful or not as to the dissolution of the marriage. And, even if that were not so, and the Judge had made a wrong order respecting the costs, that is a question of practice, and not a matter upon which it would be proper for this Court to grant a prohibition. I am of opinion that we ought not, in the exercise of our discretion, to entertain this motion on the application of a stranger.

At the same time I agree with my brother Wightman in thinking that the Court for Divorce and Matrimonial Causes is the proper Court to decide whether this marriage is within stat. 20 & 21 Vict. c. 85, s. 27. That Court is a high Court established by Act of Parliament, with jurisdiction over marriages in general, and their dissolution; and this marriage was brought before it on matters appearing to be expressly within its cognizance. Whether the marriage is one which falls within sect. 6, giving the Court jurisdiction, depends partly on law and partly on fact; and, looking at the scope of the Act of Parliament, I think that is one of the questions which that high Court is appointed to decide, subject only to an appeal to the still higher Court given by sect 56. This is not like the drawing away a case from the jurisdiction of another Court, for there is no other Court except the Court for Divorce and Matrimonial Causes which can decide the question. Such appears to me to be the law on this subject, though it is not necessary to decide it positively, and we have not heard a full argument upon it.

Blackburn J. It is not necessary to decide whether, if the Court for Divorce and

Matrimonial Causes exceeded its jurisdiction, we could issue a prohibition to it. I [202] incline to think that, if there were a clear excess of jurisdiction by that Court, we could do so, notwithstanding the high dignity of the persons who constitute it. But, on the other hand, the power of appeal to the House of Lords makes me doubt, because it is argued that if prohibition lies to the inferior it would lie also to the appellate Court.

The other question is as difficult a question as can be raised; viz., whether this marriage comes within stat. 20 & 21 Vict. c. 85, s. 27, which enacts, "It shall be lawful for any husband to present a petition to the said Court, praying that his marriage may be dissolved." Suppose the case of a foreign husband, domiciled abroad, praying that a foreign marriage may be dissolved, whether the Court for Divorce and Matrimonial Causes would have jurisdiction over that suit is a question of very great doubt, and which we have not to decide. Then is it a question which, when it arises before them, the Court for Divorce and Matrimonial Causes has jurisdiction to decide, subject to appeal to the House of Lords? At present the impression on my mind is, that I agree with my brothers Wightman and Crompton in thinking that it would not be an excess of jurisdiction in that Court to decide that question. The point, however, has not been fully argued because it is not necessary to decide it.

I now come to the ground upon which I agree with the Lord Chief Justice and my brothers Wightman and Crompton in thinking that this rule should be discharged. Prohibition is granted for two reasons, as is said in Com. Dig. Prohibition (C) (not by Chief Baron Comyns, but in a paragraph between brackets which has been introduced by one of his editors, and which I think is cor-[203]-rect): "In prohibition, are, 1st, contempt of the Crown, and, 2dly, a damage to the party." If we see a contempt of the Crown, that is a case in which we ought to interfere. A stranger has in general no right to require our interference; but if he shews that he is aggrieved and has sustained damage, then, *ex debito justitiæ*, as in any other suit, he has a right to our opinion upon the question. The distinction has not been very distinctly taken in any of the previous cases; but it seems to me to be well founded on common sense; and there can be no doubt that it is far better, as a matter of discretion, that this question should be disposed of by a Court of appeal than raised in this Court by prohibition. Then is the applicant, the co-respondent, in any sense a party aggrieved by an excess of jurisdiction, assuming the proceedings to dissolve the marriage to be such? He has no interest in the question whether the marriage is to stand or not. It was argued that he is not liable to damages in the present case, because he had been joined as co-respondent in the petition which claimed a dissolution of the marriage, and that if the marriage was not to be dissolved he was not liable to pay damages. I do not concur in that construction of sect. 33. I think that under sect. 29, although the Court on hearing any countercharge against the petitioner should conclude that the marriage ought not to be dissolved, the co-respondent who had been convicted of adultery would have no right to get free from damages on that ground. But whether that be the right of construction of the statute or not, the matter is within the jurisdiction of the Court for Divorce and Matrimonial Causes, and consequently not ground for prohibition. It is further said that the Court for Divorce and Matrimonial Causes has awarded [204] that the co-respondent should pay all the costs of the proceedings, and, consequently, has included the costs of that part of them which was incidental to the dissolution of the marriage and to the attempting to raise the question in that Court; and it is argued that if the Court had no right to dissolve the marriage, it had no right to order these costs. But sect. 34 enacts, "Wherever in any petition presented by a husband the alleged adulterer shall have been made a co-respondent, and the adultery shall have been established, it shall be lawful for the Court to order the adulterer to pay the whole or any part of the costs of the proceedings." This says in words, and must have been intended to have the meaning, that if, in the course of a petition, it appears that the co-respondent was the adulterer, then whether the petition for the dissolution of the marriage were granted, or whether for some reason it were dismissed, the Court should have the power to order all or part of the costs to be paid by him. As a rule of practice it may be discreet not to order the costs to be paid by the adulterer if the petition is dismissed; but the Court has jurisdiction to order them: and therefore on that narrow ground I think this rule ought to be discharged.